



CHAPTER 30

An Act to amend section thirty-six of the Church of Scotland (Property and Endowments) Act, 1925, in its application to benefices with more than one incumbency.
[6th June, 1957]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1. For the purposes of the proviso to section thirty-six of the Church of Scotland (Property and Endowments) Act, 1925 (in this Act referred to as "the principal Act") a benefice with more than one incumbency, being a benefice which was not actually vacant at the passing of the principal Act and which has not become actually vacant before the passing of this Act, shall be deemed to become actually vacant—

Amendment of 15 & 16 Geo. 5. c. 33, s. 36.

- (a) if at the passing of this Act there were more incumbents than one of the benefice, on the termination of the interest of that one of them who last ceases to be an incumbent of the benefice; or
- (b) if at the passing of this Act there was only one incumbent of the benefice, on the termination of the interest of that incumbent;

and from the date on which such a benefice as aforesaid is by virtue of this section deemed to have become actually vacant the said section thirty-six shall, in relation to that benefice, have effect as if the proviso thereto were omitted.

Short title,
construction
and citation.

2. This Act may be cited as the Church of Scotland (Property and Endowments) Amendment Act, 1957, and shall be construed as one with the principal Act; and the Church of Scotland (Property and Endowments) Acts, 1925 and 1933, and this Act may be cited together as the Church of Scotland (Property and Endowments) Acts, 1925 to 1957.

PRINTED BY SIR JOHN ROUGHTON SIMPSON, C.B.

Controller of Her Majesty's Stationery Office and Queen's Printer of Acts of Parliament

LONDON : PUBLISHED BY HER MAJESTY'S STATIONERY OFFICE

Price 3*d.* net

PRINTED IN GREAT BRITAIN

(38667)

Occupiers' Liability Act, 1957

5 & 6 ELIZ. 2 CH. 31

ARRANGEMENT OF SECTIONS

Liability in tort

Section

1. Preliminary.
2. Extent of occupier's ordinary duty.
3. Effect of contract on occupier's liability to third party.
4. Landlord's liability in virtue of obligation to repair.

Liability in contract

5. Implied term in contract.

General

6. Application to Crown.
7. Powers of Parliament of Northern Ireland.
8. Short title, etc.